

Gaurav Sharma v. State of U.P. & 4 Others

Allahabad High Court · Division Bench · 18 September 2018 · WRIT - C No. 8396 of 2018 · **Writ petition allowed (refusal quashed; connection to be reconsidered)**

HEADNOTE

Under Section 43(1) of the Electricity Act, 2003, an owner or occupier of any premises has a statutory right to a connection, and the licensee a corresponding duty to supply. Clause 4.4 of the U.P. Electricity Supply Code, 2005 and the Indemnity Bond (Annexure 4.2) enable a genuine occupier — including a family member in separate possession who cannot obtain the owner's NOC — to obtain a connection; the object of the bond is only to exclude a trespasser or house-grabber. A connection cannot be refused merely because of a family dispute or the absence of the owner's consent.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Connection to a genuine occupier on an indemnity bond, without the owner's NOC

QUESTION

Can a licensee refuse a connection to a genuine occupier (a son in separate possession) because the owner (his father) refuses consent amid a family dispute?

HOLDING

No. Section 43(1) confers on an occupier a statutory right to supply; Clause 4.4 read with Annexure 4.2 lets a genuine occupier unable to obtain the owner's NOC furnish an indemnity bond and obtain a connection. The object of the bond is only to exclude a trespasser/house-grabber; a family dispute or want of the owner's consent is no ground to refuse. Refusal quashed and remitted for reconsideration. ¶ 6-13

LIMITING FACTS

The petitioner, a son in separate possession of one of his father's houses (paying house tax), was refused a connection because the father declined to give an NOC amid a family dispute.

PRINCIPLE TAGS

occupier-entitled-to-connection-on-indemnity-bond A genuine occupier (including a family member in separate possession) has a statutory right under s.43(1) to a connection and may furnish an indemnity bond (Annexure 4.2) where the owner's NOC is unavailable; the bond only excludes trespassers/house-grabbers. Lead authorities: *Seema Mansoor v. U.P. Power Corporation* [80741415], *Chandu Khamaru v. Nayan Malik*. ¶ 6-12

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Seema Mansoor v. U.P. Power Corporation Ltd. & Others</i> 2014 (6) ADJ 672 (DB) [80741415] Allahabad High Court (DB)	Under Clause 4.4 and Annexure 4.2 of the Code, a lessee/tenant/occupier cannot be refused a connection merely for want of the landlord's consent; the indemnity bond enables the occupier to obtain supply.	Followed as the governing authority on the occupier's entitlement. ¶ 8	Petitioner	Followed
<i>Smt. Sushama Chowdhary v. U.P. Power Corporation Ltd. & 4 Others</i> Misc. Bench No. 9588 of 2014 (Allahabad HC, DB) [864936] Allahabad High Court (DB)	Section 43(1) casts an affirmative obligation on the licensee to supply an owner or occupier; Clause 4.4 is in aid of that duty, and an occupier who cannot get the owner's consent may furnish an indemnity bond (Annexure 4.2).	Relied on and quoted for the s.43(1) obligation and the indemnity-bond route. ¶ 9	Court	Relied on

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Chandu Khamaru v. Smt. Nayan Malik</i> AIR 2011 SC 2897 Supreme Court	Under Section 43(1), a distribution licensee has a statutory duty to supply an owner or occupier who applies, and the occupier a corresponding statutory right; a family dispute does not deprive a person of a connection.	Relied on (through Sushama Chowdhary) for the statutory right of an occupier. ¶ 9	Court	Relied on

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